



File No.: EXP202311847

RESOLUTION OF RIGHTS PROCEDURE

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On July 4, 2023, a complaint was received by this Agency from Mr. A.A.A. (hereinafter, the complainant) against the COMMUNITY OF OWNERS ***COMMUNITY.1 (hereinafter, the respondent) for not having duly addressed his right to erasure.

On June 1, 2023, the complainant sent an email to the respondent requesting the erasure of his personal data published on the respondent's website as a prize winner.

The complainant states that he has not received a response.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

There is no record of any response having been submitted.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on October 4, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, to present any arguments deemed appropriate within ten working days.

The respondent stated, in summary, that they have no record of having received the exercise of the complainant's right.

"The use of a single email address for all communications generally received from the website presents the drawback that legitimate requests for the exercise of rights may end up being labeled as spam or confused with other types of general information request emails."

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However, upon receiving the complaint forwarded by this Agency, they proceeded "(...) to erase the requested data, as well as that of the other prize winners."

They also informed the complainant of the erasure carried out, providing a copy of the email sent on November 27, 2023.

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, he may present any arguments he considers appropriate.

The complainant stated, in summary, that the website of the company providing the certified email system of the company EEVIDENCE, through which he sent his request, indicates that there is no possibility of being delivered to a Spam folder, providing a copy of the delivery certificate in which it is stated as "(...) delivered."

"Nor does the respondent's allegations provide evidence of obtaining my personal data or the signed consent for my data to be published on their website, as this party understands that, if published with consent, it should have been done in an anonymized manner and not including surnames."

FIFTH: The respondent, having been granted a hearing, states, as far as this procedure is concerned, that the sending system used by the complainant indicates:

"The eEvid.Cert is only issued when the recipient's mail server returns a '250 OK' message at the end

of the email transmission. According to SMTP standards, a '250 OK' message is how a mail server indicates 'Message received!', at which point the transmission is considered correct and the connection ends.

There may subsequently be some issue with the effective delivery of the email to the recipient's inbox. For example, the recipient's inbox may have exceeded its maximum size, in which case the email is likely not delivered. SMTP is also very clear on this: in any eventuality, the recipient's server must notify the sender by sending a return message to the address listed as Return-Path in the original email. When we deliver your emails, we are the Return-Path address and we will be the ones to receive the return message before forwarding it to you: during the process, we will record that event and change the status of the eEvid from 'Confirmed' to 'Bounced'. It is your responsibility to be attentive to the return messages we may send you, as well as to decide whether your email was actually delivered or not: in some cases, these may be unimportant messages, but in others, they may confirm that the email did not reach the recipient, thus invalidating the delivery evidence.

In summary, your email can be considered effectively delivered, as long as no return message is received indicating otherwise. If no return message has been received, it is the recipient's responsibility, not yours, to find out what happened to your email.”

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The respondent states that “(...) If we add to all of the above that according to the screenshot provided by the complainant in the fourth allegation of their submission, ‘The sending is immediate and the delivery confirmation is obtained automatically without depending on any action from the recipients,’ and that the date of the shipping certificate provided in the complainant's submission is the same day as the sending (June 1, 2023), it is not far-fetched to conclude that the complainant may have rushed in issuing the provided certificate, without waiting for a possible bounce notification that could have occurred according to SMTP protocol standards up to 4 or 5 days after the message was received on the server, as the message could not be effectively delivered and remained ‘in queue.’”

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner.”

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the

LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the complainant with the appropriate response.

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The result of this forwarding did not satisfy the claims of the complainant. Consequently, on October 4, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the complainant was notified of the admission agreement. After this period, the interested party may consider their complaint to be upheld.”

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons if it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

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The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data

without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that the processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to render impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

V

Conclusion

The rights procedure is initiated as a result of the denial of any of the rights regulated in data protection legislation. Therefore, in this case, only the facts related to the requested right to erasure will be analyzed and assessed, excluding the other issues raised.

In this instance, and considering the provisions of the first paragraph of this Legal Basis, from the examination of the documentation provided, it has been established that the complainant requested the right to erasure, and that, despite the statements made by the respondent regarding the possibility that such right was not received, during the processing of this procedure, the requested erasure has been addressed and communicated to the complainant.

Consequently, it is appropriate to uphold, for formal reasons, the present complaint as the right has been addressed belatedly.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO UPHOLD for formal reasons, the complaint filed by Mr. A.A.A. against the COMMUNITY OF OWNERS ***COMMUNITY.1. However, a new certification by the respondent is not warranted, as the response was issued belatedly, without requiring additional actions by the controller.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to the COMMUNITY OF OWNERS ***COMMUNITY.1.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions established in Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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